

**Tentative Rulings and Resolution Review Hearings
August 4, 2025
Department 64**

THIS CALENDAR WILL BE CALLED IN DEPARTMENT 54

Those appearing by CourtCall should use the dial in for Department 64.

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

CAPITAL ONE, N.A. VS. GRAVES

Case Number: 24CVG-01354

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 27, 2025 to Plaintiffs and counsel for failure to timely serve pleadings on defendant as required by CRC 3.110. No response to the OSC has been filed. Plaintiff has taken no action on this matter since January 13, 2025, when their Request to Enter Default was denied due to a lack of proof of service on file. It appears Plaintiff has abandoned the matter. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today's 9:00 a.m. review hearing.

DEAN VS. CITY OF REDDING, ET AL.

Case Number: 25CV-0207096

Tentative Ruling on Motion for Reconsideration: Plaintiff Linda Dean moves for reconsideration of the Court's June 16, 2025 Order denying Plaintiff's Petition for Relief from the claims presentation requirements of the Government Claims Act, Gov. Code section 945.4. The matter was decided by visiting Judge Earl Nelson. Judge Nelson will be in Shasta County again on August 8, 2025. Hearing on this motion is being continued to **Friday, August 8, 2025 at 3:00 p.m. in Department 24**. Due to the closure of the second floor of the courthouse, Department 24 is currently being called in Department 44 and any in person appearance should be in Department 44. CourtCall is permitted without prior authorization from the Court and the parties should still utilize the CourtCall dial in for Department 64. A tentative ruling will be posted under Department 64 at least 12 hours in advance of the hearing per Local Rule of Court 5.17(C). **No appearance is necessary on today's calendar.**

IN RE: EDWARDS

Case Number: 25CV-0207806

Tentative Ruling on Petition for Change of Name: Petitioner Miranda Lynn Edwards seeks to change her name to Miranda Lynn Edwards Favorite. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

HADLEY, ET AL. VS. AMERICAN HONDA MOTOR CO, INC.

Case Number: 23CV-0201803

Tentative Ruling on Motion for Summary Adjudication: This is a lemon law action filed March 17, 2023. The operative complaint is the First Amended Complaint, filed February 19, 2025. Causes of Action 1-4 fall under the Song-Beverly Act, Cause of Action 5 is for Fraudulent Inducement-Concealment, and Cause of Action 6 is for Violation of the Magnuson-Moss Warranty Act. Defendant seeks summary adjudication of Causes of Action 1-5, only. Plaintiffs oppose the Motion.

Merits of Motion: The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304.

First-Fourth Causes of Action: Plaintiff’s First through Fourth Causes of Action allege violation of California’s Song-Beverly Consumer Warranty Act (“the Act”). California Civil Code §§ 1790 *et seq.* Defendant seeks summary adjudication on these four causes of action on the grounds that Plaintiffs are barred from asserting causes of action under the Act, because the Subject Vehicle, a 2020 Honda Pilot, was purchased from a dealership located in Oregon. Plaintiffs argue that the Act applies, because the vehicle was purchased by Plaintiffs in California.

In *Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, the California Supreme Court held that the Act does not apply unless the vehicle was purchased in California. Here, Defendant’s separate

statement and supporting evidence establishes the following facts. Plaintiffs entered into a Contract to purchase a new 2020 Honda Pilot from Tonkin Gresham Honda in Troutdale, Oregon. (D-UMF 1.) The Contract signed by Plaintiffs states that the law of Oregon applies to the Contract, and any sale hereunder will be governed by the laws of the state of Oregon. (D-UMF 2.) The seller dealership's address as stated in the Contract is: Tonkin Gresham Honda, 24999 SE Stark St., Troutdale, OR 97060. (D-UMF 3.) Defendant has carried its burden to show that there is a complete defense to these four causes of action, by establishing that the Act does not apply to the Plaintiff's purchase of the Subject Vehicle, because it was purchased in Oregon, not California. Because Defendant has carried its burden, the burden shifts to Plaintiffs to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.

Plaintiff's response to Defendant's separate statement and supporting evidence establishes the following facts. Elizabeth Hadley located the Vehicle online at a Portland, Oregon, dealership. The purchase was conducted remotely, over the phone and by email, and the Vehicle was delivered to Plaintiffs in California. Plaintiffs took possession of the Vehicle in California. Plaintiffs never went to Oregon in connection with the purchase of the Vehicle. (Del. Hadley ¶ 7.) Plaintiffs have met their burden of establishing a triable issue of material fact with respect to where the Subject Vehicle was purchased.

In *Davis v. Newmar Corp.* (2006) 136 Cal.App.4th 275, the Second District Court of Appeal addressed the inverse scenario of the present facts. In *Davis*, the Court held that the Song-Beverly Act did not apply to the transaction of a buyer who negotiated the purchase of a new motor home with a retailer in California, but who accepted delivery of the motor home in Nevada. The Court held that the Act applied only to vehicles sold in California, and the buyer's motor home was not sold in California, since title passed outside California. Here, there is a triable issue of material fact regarding where the title to the Subject Vehicle passed. Plaintiffs negotiated the transaction over the phone and online from California, with an out-of-state seller, and took possession of the vehicle in California. In *Davis*, the Court held that the crucial question is where title passed. "Under California law, title to the motor home passed upon delivery—in Nevada. (*California State Electronics Assn. v. Zeos Internat. Ltd.* (1996) 41 Cal.App.4th 1270, 1276–1277, 49 Cal.Rptr.2d 127; *see also* Cal. U. Com.Code, § 2401, subd. (2)(a).) Because title passed outside of California, the Act does not apply. (*California State Electronics Assn. v. Zeos Internat. Ltd.*, *supra*, at pp. 1276–1277, 49 Cal.Rptr.2d 127.)" *Davis v. Newmar Corp.* (2006) 136 Cal. App. 4th 275, 278. Also in *Davis*, the Court noted the importance of the California Tax Board treating the transaction as an out of state purchase in determining where the sale took place. Here, there is no evidence before the Court regarding either where the title passed, or tax treatment of the sale. Plaintiff has carried its burden to show a triable issue regarding whether title passed in Oregon or California. Summary adjudication of the First through Fourth Causes of Action is **DENIED**.

Fifth Cause of Action: Plaintiff's Fifth Cause of Action alleges Fraudulent Inducement-Concealment. The FAC alleges that the 2020 Honda Pilot, including the Subject Vehicle, contain defective "infotainment" systems that cause systems including navigation, audio, and backup camera to malfunction. This causes the system to freeze or crash, which poses a safety risk by distracting the driver and/or causing safety-related systems including the backup camera to fail. (FAC ¶ 45.)

Defendant seeks summary adjudication on the grounds that the cause of action fails as a matter of law, because Plaintiff cannot establish essential elements of a fraud claim. "The required elements

for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]” *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

Defendant’s moving papers argue that the fraud claim is not pled with sufficient particularity, but the sufficiency of the pleadings is not at issue on a Motion for Summary Judgment. Instead, Defendant must show that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Defendant argues that Plaintiffs have alleged a duty to disclose based on Defendant’s exclusive knowledge of the infotainment system defects. Defendant then argues that “Plaintiffs’ references to complaints that were publicly available wholly contradicts Plaintiffs’ conclusory allegations that AHM had exclusive knowledge of them.” (MSA p.6 ln. 6-7.) There is no citation to evidence regarding “Plaintiffs’ references,” and the Court cannot determine what Defendant is referring to.

Defendant’s separate statement and supporting evidence sets forth only four undisputed material facts with respect to the fifth cause of action. In relevant part, they provide that Plaintiffs’ fifth cause of action is for fraudulent inducement-concealment in regards to alleged defects with the “infotainment” system in 2020 Honda Pilot vehicles. (UMF 3.) Plaintiffs’ Complaint does not allege any specific “infotainment” system defect as to Plaintiff’s vehicle. (UMF 4.) These facts only address the sufficiency of pleading the fraud claim, they do not negate any element of the cause of action. As noted above, there is some argument regarding the elements of concealment, duty, and damages in the moving papers, but these elements are not addressed in the separate statement. The Court cannot make assumptions or conjectures regarding what evidence Defendant is setting forth in support of these arguments. *See* CRC Rule 3.1350(d); CCP § 437c(b)(1). Additionally, the Court notes that the First Amended Complaint’s Fifth Cause of Action does allege the Subject Vehicle contained a defective “infotainment system” that cause systems including navigation, audio, and backup camera to malfunction. This causes the system to freeze or crash, which poses a safety risk by distracting the driver and/or causing safety-related systems including the backup camera to fail. (FAC ¶ 45.) Defendant has failed to carry its burden to establish no triable issue of fact remains with respect to the fifth cause of action. Summary adjudication is **DENIED**.

Sixth Cause of Action: The Court notes that Plaintiff raised arguments regarding the Sixth Cause of Action in its Opposition, despite Defendant not seeking summary adjudication of this cause of action in its Motion. Defendants address Plaintiff’s opposition arguments in their Reply brief. The Court declines to rule on the merits of this cause of action, as the Motion for Summary Adjudication did not seek a ruling on it, and the Separate Statement does not include this cause of action or cite supporting evidence.

Defendant’s Motion for Summary Adjudication is **DENIED**. Defendant’s proposed order will be modified to reflect the denial.

IN RE: HANSEN

Case Number: 25CV-0207879

Tentative Ruling on Petition for Change of Name: Petitioner Van Tran Hansen seeks to change the name of her minor daughter. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided. Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). The Court notes that the Petition indicates that the father's address is in Vietnam. The Court will permit service by mail. This matter is continued to **Monday, October 20, 2025, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC and Petition must be mailed to the father at least 50 days before the continued hearing date. (30 days are required for notice, and 20 additional days are required for mailing outside the U.S. per CCP 1005(b).) Proof of service on the father must be filed with the Court. No appearance is necessary on today's calendar.

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

Case Number: CVPO21-0198083

Tentative Ruling on Motion to Compel Deposition of Jerry Staffing, LLC's Person Most Qualified: The present motion is unopposed. Plaintiffs move to compel the deposition of Defendant Jerry Staffing, LLC's Person Most Qualified on the topic of Organizational Structure pursuant to CCP § 2025.450. Plaintiffs also request sanctions in the amount of \$2,452.50. Finally, Plaintiffs are seeking issue and evidentiary sanctions.

Merits of Motion. CCP § 2025.450 permits a noticing party to move for an order compelling the deposition if the deponent fails to appear. Plaintiffs have established that they noticed the deposition of PMQ of Jerry Staffing, LLC. Despite multiple continuances the PMQ deponent has never appeared for his/her deposition. Plaintiffs previously moved to compel the deposition, but the motion was denied based on Defendants' representations that the PMQ would be set and occur. Despite these representations, the deposition has not occurred, and the present motion was filed. The Court finds that PMQ deposition shall occur, and an order will issue to compel the deposition.

Sanction. If a motion under CCP § 2025.450 is granted, the imposition of monetary sanctions is mandatory against the deponent or party, unless the court finds that the one subject to the sanctions acted with substantial justification or that other circumstances make the imposition of sanctions unjust. CCP § 2025.450(g). Defendants have not filed an opposition to this motion and therefore have provided no justification or other circumstance to make the imposition of sanctions unjust. Monetary sanctions will be awarded as requested in the amount of \$2,452.50.

Plaintiffs have also requested various evidentiary and issue sanctions. CCP § 2023.030(b). The Court finds that the imposition of evidentiary or issue sanctions is unwarranted under the current circumstances. While there have been prior discovery disputes, there was no prior order compelling this deposition to occur.

The motion is **GRANTED**. Monetary sanctions are awarded in the amount of \$2,452.50. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.

Tentative Ruling on Motion to Compel Further, Complete and Code-Compliant Responses:

Moving Defendants request an order compelling Plaintiffs to provide further responses to Form Interrogatories and Requests for Production pursuant to CCP § 2030.210 and 2031.300. Moving Defendants served discovery on the numerous Plaintiffs but brought a combined motion as to all Plaintiffs related to purported common defects in their responses. Moving Defendants also request monetary sanctions in the amount of \$3,500.

Merits of Motion. A party may move for an order compelling further responses to form interrogatories and requests for production if the responses provided were deficient. CCP §§ 2030.300(a) and 2031.310(a). Here, Moving Defendants have identified multiple form interrogatories and request for production that they contend require further responses. After the current motion was filed, Plaintiffs provided further responses. Accordingly, the request to compel further responses is moot. If Moving Defendants determine that the further responses remain deficient, they can always file a new motion related to the further responses after participating in the statutorily required meet and confer process.

Sanctions. A party that successfully makes or opposes a motion to compel further response is entitled to mandatory monetary sanctions unless the party subject to sanctions acted with substantial justification or the imposition of sanctions would be unjust. CCP § 2030.300(d) & 2031.310(h). Sanctions can be imposed even if further responses are provided after a discovery motion is filed. CRC 3.1348(a). Motions to compel further responses must generally be supported by a meet and confer declaration. CCP § 2030.300(b) & CCP § 2031.310(b)(2). A meet and confer declaration must “state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” CCP § 2016.040. The declaration of David Ries filed in support of the motion provides the conclusory statement that the parties have “engaged in robust meet-and-confer efforts.” No specific facts are provided. No copies of meet and confer correspondence were filed with the moving papers. Moving Defendants have failed to provide a sufficient meet and confer declaration that is required to support a motion to compel further responses. Based on the deficient meet and confer declaration, the Court finds that the imposition of sanctions would be unjust.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to conform to the Court’s final ruling.

WISER, ET AL. VS. GENERAL MOTORS, LLC

Case Number: 25CV-0207048

Tentative Ruling on Demurrer: This matter is on calendar for hearing on Defendant GM’s Demurrer to the Complaint, filed June 12, 2025. On July 23, 2025, Plaintiff filed a First Amended Complaint. This is permitted per CCP § 472(a) and renders the Demurrer moot. The Court notes that the FAC was filed one day past the date for filing an opposition to the demurrer. However, proof of service indicates timely notice, so Defendant is not prejudiced. The Court will accept the late filing and drop the matter from calendar. No appearances are necessary.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (“Pitchess”): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of

Plaintiff's peace officer personnel records from custodian and non-party County of Siskiyou, who opposes the Motion. Plaintiff has not filed an opposition to the Motion.

Merits of Motion: A motion to obtain a peace officer's personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: "1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard, 2) A description of the type of records or information sought" and "3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." *Id.* This initial burden is a "relatively low threshold for discovery". *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a "plausible factual foundation" for how the records are material to the subject matter of the pending litigation. *Id.* A "good cause" declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevant. *Riske, supra* 6 Cal.App.5th at 655-56.

Plaintiff's Third Amended Complaint asserts causes of action for sexual harassment and retaliation in violation of the FEHA and failure to prevent harassment by the Redding Police Department. Plaintiff recently gave a deposition, where she testified that she had many of the same problems during the course of her employment with Siskiyou County that she alleges against RPD. The excerpts of the deposition demonstrate that Plaintiff's personnel documents are likely to show similar complaints by Plaintiff, as well as similar job performance problems. The Declaration of Ashley Riser establishes that these facts are relevant to the City's defenses, which include that many of Plaintiff's allegations are fabricated or exaggerated, and that Plaintiff was terminated for legitimate performance reasons. Plaintiff also seeks to establish that Plaintiff has a pattern of behavior across multiple agencies that undermines her claims. Defendant has made the requisite showing of good cause and relevance to permit discovery.

The City's request is narrowly tailored to lead to the discovery of admissible evidence. Specifically, the City seeks: 1. Documents related to Plaintiff's employment performance, including evaluations, counseling memos, and documents related to a Performance Improvement Plan; 2. Documents related to leaves of absence taken by Plaintiff; 3. Disciplinary documents including separation and reinstatement notices; 4. Documents related to Plaintiff's separation from

the County; 5. Complaints by Plaintiff relating to sexual harassment, discrimination, or workplace retaliation; 6. Workplace investigations involving alleged misconduct by Plaintiff; 7. Workplace investigations involving allegations of misconduct made by Plaintiff; 8. Plaintiff's wage records for March 2024 – June 2025. The Court has reviewed each of these categories in light of the evidence and argument provided in the Declaration of Ashley Riser to determine whether good cause exists for each category. Given Plaintiff's allegations, the Court finds that the information and documents sought are material to Plaintiff's claims or Defendant's defenses. The documents are relevant and would either be admissible or could potentially lead to the discovery of admissible evidence.

Protective Order: Siskiyou County asks for any disclosure of records to be limited by a new proposed protective order. Defendant City of Redding asks the Court to permit disclosure under the protective order already entered in this case on December 12, 2024. Neither of the parties make any substantive argument regarding why the current protective order is or is not sufficient. The parties are directed to meet and confer on this issue, and to provide a stipulation and order to either the current protective order, or Siskiyou's proposed protective order, if possible. If the issue requires Court intervention, the matter will be decided at the *in-camera* review prior to disclosure of records.

Witness Interviews: The City's Motion and Reply contain a brief request – presumably for a Court order - to ask County witnesses about the content of the released material, and to conduct "interviews" of any potential witnesses identified in the personnel records who may have been involved, to obtain context or clarify certain facts. County of Siskiyou opposes this request. The Court declines to make such an order.

The Motion is **GRANTED**. A proposed order was lodged with the Court and will be executed. The Court will conduct an *in-camera* review of the documents prior to their release. All released documents will be designated Confidential under a protective order as detailed above. An appearance is necessary on today's calendar to schedule the *in-camera* review.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion to Compel Compliance with Nonparty Subpoena: Defendant City of Redding moves for an order compelling nonparty Brett Leonard (a former RPD officer) to comply with Defendant's deposition subpoena for production of business records. The Motion is made pursuant to CCP §§ 1987.1, 2020.010, 2020.220, 2020.410, 2025.480 and CRC 3.1345(b)(1) on the grounds that Leonard has failed to produce any responsive documents or respond at all to the subpoena. City also moves for an order of contempt and for the statutory award of \$500 for Mr. Leonard's disobedience of the Subpoena. No opposition or motion to quash has been filed.

Service of the Motion: The instant Motion was served on the Nonparty Subpoenaed Witness by email only. California Rule of Court 3.1346 requires written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record. There is no evidence in the record that Brett Leonard agreed to accept service of the Motion by email.

Service of the Subpoena: The Deposition Subpoena for Production of Business Records to Brett Leonard is attached to the Motion as Exhibit C. The proof of service is blank. The Declaration of Nathan Jackson, an attorney representing the City of Redding, states that Mr. Leonard agreed to email service of the subpoena, and the subpoena was served via email at Mr. Leonard's RPD work email address. (Decl. Jackson ¶ 4-5.) This is not sufficient proof of service. A Deposition Subpoena must be personally served. CCP § 2020.220. Counsel's representation that a nonparty agreed to email service of a subpoena at a work email address – where he does not currently work, is not sufficient to satisfy the notice requirement.

Defendant's Motion to Compel Compliance with Nonparty Subpoena is **DENIED**. A proposed order has been lodged and will be modified.

9:00 a.m. Review Hearings

B.C. VS. MOCK

Case Number: 22CV-0201088

This matter is on calendar for review to vacate the existing September 3, 2025 Court Trial and to reset a new Court Trial date after Defendant's criminal trial. The parties are ordered to appear today to vacate and reset the trial date.

CAPITAL ONE, N.A. VS. GRAVES

Case Number: 24CVG-01354

This matter is on calendar for review regarding status of the case. The matter is not at issue. This action was filed September 16, 2024. No proof of service of summons has been filed. An OSC re Sanctions is set for hearing today at 8:30 a.m. Failure to appear today will result in the issuance of an Order to Show Cause re Dismissal.

LVNV FUNDING LLC VS. PADRON

Case Number: 24CVG-01871

This matter is on calendar for review regarding status of conditional settlement. A Conditional Notice of Settlement of Entire Case was filed February 6, 2025. The notice sets forth that the settlement is conditional on the satisfactory completion of specified terms that are not to be performed within 45 days of the date of settlement, and that a request for dismissal will be filed no later than February 7, 2026. Due to limited court budgets and reduced court staffing, the Court does not have staffing to monitor a case to assure dismissal and closure of the court file. The parties are directed to resolve the case in a way which results in a conditional dismissal; i.e., a stipulation that the dismissal may be set aside and judgment entered if there is a default in completing the terms of the settlement. This matter is continued to **Monday, September 15, 2025, at 9:00 a.m. in Department 64** for review regarding conditional dismissal. No appearance is necessary on today's calendar.

RIVERA, ET AL. VS. NISSAN NORTH AMERICA, INC.

Case Number: 24CV-0205714

This matter is on calendar for status and resetting of the trial date. The Court vacated the July 8, 2025 trial date on its own motion due to unavailability of a courtroom. The Court designates this matter as a plan II case and intends to set the matter for trial no later than February 10, 2026.

Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

SEIGMUND VS. MARSHALL

Case Number: 23CV-0203641

This matter is on calendar for review regarding status of the Statement of Decision. Pursuant to CRC 3.1590(c)(1), the Court issued a Proposed Statement of Decision on June 6, 2025. The clerk mailed the Proposed Statement of Decision to both parties on June 9, 2025. Defendant timely filed Objections to the Proposed Statement of Decision on June 24, 2025. Plaintiff responded to Defendant's Objections on July 9, 2025.

This matter was tried, and the Statement of Decision was issued, by Judge Baker, who has since retired. Judge Baker will be returning as an assigned Judge, and this matter will be set for hearing before him on the next available date, which is **Friday, August 22, 2025, at 1:30 p.m. in Department 64.** No appearance is necessary on today's calendar.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$73,375.00 U.S. CURRENCY

Case Number: 25CV-0207207

This matter is on calendar for review regarding status. The People of the State of California filed a Petition for Forfeiture in Rem on March 7, 2025. No claim opposing forfeiture has been filed. At the most recent hearing, Deputy DA Gohn requested a continuance to file a Request for Default. No Request for Default has been filed. An appearance is necessary on today's calendar to provide a status.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$17,038.22 U.S. CURRENCY

Case Number: 24CV-0204451

This matter is on calendar for status. Claimant Ryan Montgomery filed a Claim Opposing Forfeiture on March 6, 2024. The People of the State of California filed a Petition for Forfeiture on March 11, 2024. At the most recent review hearing on June 16, 2025, Counsel informed the Court that the underlying criminal matter has resolved and requested a continuance to permit settlement discussions. No status report has been filed. An appearance is necessary on today's calendar to provide a status.

ZARIFIAN VS. GENERAL MOTORS LLC, ET AL.

Case Number: 24CV-0205004

This matter is on calendar for review regarding status of judgment/dismissal. A Notice of Conditional Settlement was filed on October 26, 2015 which indicates that the case would be dismissed no later than May 30, 2025. No dismissal is on file. The Court intends to dismiss this case pursuant to California Rule of Court 3.1385(b) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.

WILSON VS. FASOLI

Case Number: 23CV-0201520

This matter is on calendar for trial setting. The Court designates this matter as exempt from the case management time standards. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.